

## CCRB INVESTIGATIVE RECOMMENDATION

|                                                  |                                             |                           |                                                       |                                    |                                 |
|--------------------------------------------------|---------------------------------------------|---------------------------|-------------------------------------------------------|------------------------------------|---------------------------------|
| Investigator:<br>Rebecca Ho                      | Team:<br>Team # 5                           | CCRB Case #:<br>201306145 | <input checked="" type="checkbox"/> Force             | <input type="checkbox"/> Discourt. | <input type="checkbox"/> U.S.   |
|                                                  |                                             |                           | <input checked="" type="checkbox"/> Abuse             | <input type="checkbox"/> O.L.      | <input type="checkbox"/> Injury |
| Incident Date(s)<br>Saturday, 07/06/2013 3:15 AM | Location of Incident:<br>2025 Seward Avenue | Precinct:<br>43           | 18 Mo. SOL<br>1/6/2015                                | EO SOL<br>1/6/2015                 |                                 |
| Date/Time CV Reported<br>Wed, 07/10/2013 1:12 PM | CV Reported At:<br>CCRB                     | How CV Reported:<br>Phone | Date/Time Received at CCRB<br>Wed, 07/10/2013 1:12 PM |                                    |                                 |

| Complainant/Victim | Type | Home Address |
|--------------------|------|--------------|
|                    |      |              |

| Witness(es) | Home Address |
|-------------|--------------|
|             |              |
|             |              |
|             |              |

| Subject Officer(s)     | Shield | TaxID  | Command |
|------------------------|--------|--------|---------|
| 1. POM Jimmy Bonilla   | 08383  | 951552 | PBBX    |
| 2. POM Gregory Kennedy | 26842  | 948364 | 043 PCT |

| Officer(s)            | Allegation                                                       | Investigator Recommendation |
|-----------------------|------------------------------------------------------------------|-----------------------------|
| A.POM Jimmy Bonilla   | Abuse: PO Jimmy Bonilla searched § 87(2)(b)                      |                             |
| B.POM Gregory Kennedy | Force: PO Gregory Kennedy used physical force against § 87(2)(b) |                             |
| C.POM Gregory Kennedy | Abuse: PO Gregory Kennedy damaged § 87(2)(b) s property.         |                             |

### Case Summary

§ 87(2)(b) filed this complaint with the CCRB via telephone on July 10, 2013.

On July 6, 2013, at approximately 3:15 a.m., § 87(2)(b) sat in the right rear seat of a car with his four friends. The car was pulled over by PO Jimmy Bonilla and PO Gregory Kennedy, who drove a marked van. PO Kennedy told the driver his license plate was crooked while PO Bonilla shone his flashlight into § 87(2)(b)'s eyes. § 87(2)(b) asked the officer to move the light away from his eyes but PO Bonilla continued to do so. PO Bonilla asked § 87(2)(b) to step out of the vehicle, frisked him, and searched his backpack (**Allegation A**). § 87(2)(b) returned to his seat. Then, PO Kennedy came over and asked § 87(2)(b) for his identification. § 87(2)(b) could only find his college ID, and provided his father's address. PO Kennedy could not find § 87(2)(b) in the system and told § 87(2)(b) to exit the vehicle again. PO Kennedy handcuffed § 87(2)(b) and escorted him to the van. As § 87(2)(b) was climbing into the van, PO Kennedy pushed § 87(2)(b) with one hand in the back (**Allegation B**), which caused him to slip and fall forward into the seats of the vehicle. He hit a hard, unknown object near the seats and as a result, damaged his glasses (**Allegation C**). § 87(2)(b) was arrested for providing false information. Later on, § 87(2)(b) found his missing ID, and saw it listed his mother's address.

§ 87(2)(b)'s arrest paperwork indicates his arresting officer was PO Bonilla of the 43<sup>rd</sup> Precinct. The driver of the vehicle pulled over, § 87(2)(b) § 87(2)(b) provided § 87(2)(b) with PO Bonilla and PO Kennedy's name and shield numbers. § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

On July 12, 2013, the undersigned investigator received this case and a please call letter was mailed on July 15, 2013. On July 15, 2013 the investigator called and left § 87(2)(b) a voicemail requesting a call back. On July 18, 2013, § 87(2)(b) provided a telephone statement and rejected mediation. § 87(2)(b) missed two appointments on July 30, 2013, and August 9, 2013 without having first called to cancel or reschedule. A missed appointment letter was mailed on July 30, 2013 and a search of the DOC database on August 9, 2013 showed § 87(2)(b) is not incarcerated. As of August 9, 2013, neither of the two letters mailed have been returned by the USPS. § 87(2)(g)

§ 87(2)(g)

Team: 5

|               |                   |                  |
|---------------|-------------------|------------------|
| Investigator: | <u>Rebecca Ho</u> | <u>8/12/2013</u> |
|               | Signature         | Date             |

|             |                 |         |
|-------------|-----------------|---------|
| Supervisor: | <u></u>         | <u></u> |
|             | Title/Signature | Date    |

|           |                 |         |
|-----------|-----------------|---------|
| Reviewer: | <u></u>         | <u></u> |
|           | Title/Signature | Date    |

|           |                 |         |
|-----------|-----------------|---------|
| Reviewer: | <u></u>         | <u></u> |
|           | Title/Signature | Date    |